

Ascertainable damages must be measurable by the contract or by reference to the contract itself and the basis for computing damages must be reasonable and certain. (*CIT Group/Equipment Financing, Inc. v. Super DVD, Inc.* (2004) 115 Cal.App.4th 537, 541.) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc., § 481.190.) At a noticed hearing, the court shall issue a RTOA if it finds all of the following: (1) an attachable claim, (2) probable validity of the claim, (3) proper purpose, and (4) the amount to be secured by attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a)(1–(4).) The amount plaintiff seeks to attach appears to be based not on the disgorgement damages but primarily on the cost of repair or replacement. As the cost of repair or replacement is not based on an agreement between the parties but rather between plaintiff and a third-party, this is not an ascertainable amount.

Based on the foregoing, the application is denied.

12. S-CV-0056415 James E Williams & Son v. Moreland, Christopher G

Order to Show Cause re Preliminary Injunction

In light of plaintiff’s request to remove this hearing from calendar (filed May 29, 2026) and defendant JP Morgan Chase Bank’s similar filing (filed June 1, 2026), the court drops the order to show cause hearing from calendar. No preliminary injunction shall issue and the temporary restraining order issued by this court on May 1, 2026 is hereby dissolved.

13. S-CV-0056665 Gardner, Cheryl Fornear v. Hyundai Motor America

The moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant’s Motion to Compel Arbitration and Motion to Stay

Defendant’s request for judicial notice is granted.

Plaintiff’s objection No. 1 as to Rao Decl. ¶ 5 is sustained as to the reference to plaintiff. Plaintiff’s objection No. 2 as to Rao Decl. ¶ 6 is sustained as to references to plaintiff in lines 14-22 and overruled as to lines 23-26.

Procedural History

On December 3, 2025, plaintiff filed a complaint regarding the purchase of a 2020 Hyundai Sonata with three causes of action against defendant Hyundai Motor America, for breach of express warranty; breach of implied warranty; and violation of the Song Beverly consumer warranty act. On January 23, 2026, defendant moved to compel arbitration alleging the warranty and Hyundai’s Bluelink services included a binding arbitration provision. Plaintiff opposes this motion.